

SENATE BILL 2644

By Roberts

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 38 and Title 39, relative to foreign actors.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 39, Chapter 16, is amended by adding Sections 2 through 6 of this act as a new part.

SECTION 2.

(a) This part is known and may be cited as the "Crush Transnational Repression in Tennessee Act."

(b) The purpose of this part is to counter the threat and practice of transnational repression committed by foreign governments or foreign terrorist organizations against the citizens and residents of this state, and to counter the threat and practice of foreign government interstate harassment through extranational enforcement of a foreign government's laws and directives.

SECTION 3.

As used in this part, unless the context requires otherwise:

(1) "Agent of a foreign adversary" means an agent directed or controlled by a foreign adversary, or such agent's proxy;

(2) "Agent of a foreign terrorist organization" means an agent directed or controlled by a foreign terrorist organization, or a foreign terrorist organization agent's proxy;

(3) "Foreign adversary" means the countries specified in 15 CFR 791.4(a), or a successor regulation;

(4) "Foreign law":

(A) Means a law, legal code, or system of governance of a jurisdiction other than the United States or a state or territory of the United States; and

(B) Includes, but is not limited to, Sharia Law;

(5) "Foreign terrorist organization" means an entity designated as a foreign terrorist organization by the United States department-of state in accordance with § 219 of the Immigration and Nationality Act (8 U.S.C. § 1189), or by the United States department of the treasury as a specially designated entity in accordance with 31 CFR subtitle B, chapter V;

(6) "Protected conduct" means conduct that is:

(A) Lawful under federal, state, or local law of the United States; and

(B) Is:

(i) Free exercise of religion;

(ii) Speech, orally or in writing in print or digital form, on a matter of public interest or concern;

(iii) Petitioning any federal, state, or local government entity for redress of grievances; or

(iv) Peaceably assembling; and

(7) "Transnational repression" means an act emanating from or attributable to a foreign adversary or foreign terrorist organization that is committed:

(A) By an agent of that foreign adversary or foreign terrorist organization;

(B) With the intent to harass, intimidate, censor, or otherwise extend the foreign adversary's or foreign terrorist organization's ability to influence, control, or impose the foreign adversary's or foreign terrorist organization's preferences on the behavior of individuals outside of the foreign adversary's territorial jurisdiction, if applicable; and

(C) Either:

(i) Directly by means of physical contact, threats, or electronic targeting; or

(ii) Indirectly by means such as actual or credible threats of collective punishment or harassment of other individuals under the regime's effective control, financial coercion, abuse of administrative processes, selective prosecution of laws of general application, or the use or direction of social media and telecommunications entities.

SECTION 4.

Except in the case of a Class A felony offense, a criminal offense must be punished one

(1) classification higher than is otherwise provided by law if the offense is:

(1) Committed by an agent of a foreign adversary or agent of a foreign terrorist organization while acting knowingly at the direction of, on behalf of, or under the influence of the foreign adversary or foreign terrorist organization or a proxy of the foreign adversary or foreign terrorist organization;

(2) Committed with the intent to:

(A) Coerce a person to act on behalf of a foreign adversary or foreign terrorist organization;

(B) Coerce a person to leave the United States or cause another person to leave the United States;

(C) Cause a person to forebear from engaging in protected conduct; or

(D) Retaliate against a person for engaging in protected conduct; and

(3) Not protected by the First Amendment to the Constitution of the United States.

SECTION 5.

(a) Notwithstanding a law to the contrary, a ruling or decision of a state court, arbitration panel, tribunal, or administrative agency that is based in whole or in part on a foreign law is void and unenforceable in this state if it would deny a party a liberty, right, or privilege guaranteed by the constitution of Tennessee or the constitution of the United States.

(b) A contract or contractual provision that is based in whole or in part on a foreign law is void and unenforceable in this state if it would deny a party a liberty, right, or privilege guaranteed by the constitution of Tennessee or the constitution of the United States.

(c) It is an offense to intentionally engage in the prevention, detection, investigation, monitoring, surveilling, or prosecution of an offense under the law or rule of a foreign adversary or foreign terrorist organization in violation of the laws of this state or the United States without the knowledge and approval of a state or federal law enforcement agency that is authorized to give such approval.

(d)

(1) Except as provided in subdivision (d)(2), a violation of subsection (c) is a Class D felony.

(2) A violation of subsection (c) is a Class C felony if, at the time that the offense was committed, the person who committed the offense was acting as an agent of a foreign adversary government or an agent of a foreign terrorist organization.

SECTION 6.

(a) On or before July 1, 2027, the Tennessee bureau of investigation may provide or adopt a training program for transnational-repression recognition and response and make the training program available for use by all law enforcement

agencies in this state. The Tennessee bureau of investigation may obtain a training program for transnational repression recognition and response from another state or federal governmental unit, or from a non-governmental entity that specializes in such training. The training may be updated to address emerging threats and specific information on tactics used by specific foreign governments.

(b) The training may include topics such as the following:

(1) How to identify different tactics of transnational repression in physical and nonphysical forms;

(2) The foreign adversaries and foreign terrorist organizations that are known to employ transnational repression, including not only those who use it most frequently, but also those who use it most egregiously, including, but not limited to, tools of digital surveillance and other cybertools frequently used to carry out transnational repression activities;

(3) Best practices for appropriate local and state law enforcement prevention, reporting, and response tactics; and

(4) Information about communities targeted by transnational repression that may be perpetuated by foreign adversaries and foreign terrorist organizations.

(c) The Tennessee bureau of investigation may develop and implement a public awareness campaign to inform members of the public about how to identify and report instances of transnational repression, as well as tools and remedies that are available for victims of transnational repression. If implemented, the public awareness campaign must include:

(1) A centralized and easy to find website for reporting purposes that is advertised widely to the public;

(2) Reporting mechanisms available in multiple languages, including in the languages of communities that are frequently the-victims of transnational repression; and

(3) Annual reporting on the number of complaints received and outcomes, as well as instances of foreign interference in the reporting process. The Tennessee bureau of investigation shall provide any reports made pursuant to this subdivision (c)(3) to the governor and the general assembly in unredacted form. The Tennessee bureau of investigation shall make any reports made pursuant to this subdivision (c)(3) available to the public, but may provide the publicly available reports in redacted form to protect ongoing criminal investigations and the identities of victims.

SECTION 7. Tennessee Code Annotated, Title 4, Chapter 1, Part 4, is amended by adding the following as a new section:

Each state agency shall include information on transnational repression, as defined in Section 3 of this act, in agency policies and procedures and provide for direct complaints of transnational repression to be made to a representative of the agency.

SECTION 8. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 9. This act takes effect upon becoming a law, the public welfare requiring it.